

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sruthi Venigalla	Team: Squad #13	CCRB Case #: 201508008	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 09/19/2015 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/19/2017	Precinct: 75		
Date/Time CV Reported Mon, 09/21/2015 7:50 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 09/21/2015 7:50 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM David Rosenberg	24499	947438	NARCBBN
2. SGT Alexandru Anghel	00240	934403	NARCBBN
3. POM James Schuessler	28718	947477	NARCBBN
4. DT3 Meagan Barone	00657	929686	NARCBBN
5. Officers			NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Karanlall Brijbukhan	00660	932364	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . SGT Alexandru Anghel	Abuse: Sgt. Alexandru Anghel entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . POM James Schuessler	Discourtesy: Det. James Schuessler spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM David Rosenberg	Discourtesy: Det. David Rosenberg spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . Officers	Discourtesy: Officers spoke discourteously to § 87(2)(b)	D . Officer(s) Unidentified
E . SGT Alexandru Anghel	Abuse: Sgt. Alexandru Anghel failed to show the search warrant to § 87(2)(b) and § 87(2)(b)	E . Unsubstantiated
F . DT3 Meagan Barone	Abuse: Det. Meagan Barone strip-searched § 87(2)(b)	F . Unsubstantiated

Case Summary

On September 21, 2015, § 87(2)(b) filed this complaint via telephone with the Civilian Review Board on behalf herself, § 87(2)(b) and § 87(2)(b) whom she identified as her sons, and § 87(2)(b) whom she identified as § 87(2)(b)'s girlfriend. § 87(2)(b) and § 87(2)(b) appeared in person on September 25, 2015 and provided statements. § 87(2)(g)

On September 19, 2015, at about 6 a.m., officers assigned to Narcotics Borough Brooklyn North (NBBN) executed a search warrant at § 87(2)(b)'s residence, § 87(2)(b) in Brooklyn (**Allegation A**). § 87(2)(b) and her two sons, § 87(2)(b) and § 87(2)(b) and § 87(2)(b)'s girlfriend, § 87(2)(b) were all asleep inside of the apartment. § 87(2)(b) was asleep in her bedroom. § 87(2)(b) was asleep in the living room on a recliner. § 87(2)(b) and § 87(2)(b) were asleep in § 87(2)(b)'s bedroom. Upon entering the apartment, there is a long hallway. Off the hallway to the right is the kitchen and further down the hallway is § 87(2)(b)'s bedroom, and on the left side of the hallway is the living room and further down on the left side is § 87(2)(b)'s bedroom.

§ 87(2)(b) and § 87(2)(b) were awoken by a loud noise. § 87(2)(b) stood up from the recliner and walked toward the front door to see what was happening. Before entering the hallway, § 87(2)(b) observed police officers, including Det. James Schuessler and Det. David Rosenberg from NBBN, entering the hallway. Both officers turned to § 87(2)(b) and told him several times to “get the fuck on the ground” (**Allegations B and C**). § 87(2)(b) lay down on the ground, and he was handcuffed. From the bedroom, § 87(2)(b) thought she overheard officers saying to § 87(2)(b) in the living room, “Stay where the fuck you’re at,” “Sit the fuck down,” and, “Don’t ask no fucking questions” (**Allegation D**). § 87(2)(b) was left handcuffed in the living room and the officers proceeded to the other rooms. From the living room, § 87(2)(b) thought he heard officers telling someone in another room to “get the fuck on the ground” (**also Allegation D**).

Inside of her room, § 87(2)(b) got out from bed and opened her bedroom door, where she observed approximately eight officers dressed in plainclothes inside of her apartment. An unidentified officer told her, “Get your fucking hands up!” (**also Allegation D**). § 87(2)(b) put her hands behind her back, but asked why she was under arrest and asked to see a search warrant more than once (**Allegation E**). An officer did not respond to her. Det. Meagan Barone, a female officer, entered the bedroom, handcuffed § 87(2)(b) and asked her if she had anything on her person. § 87(2)(b) who was wearing only a tee-shirt and underwear, told Det. Barone “no” and that she was menstruating. Det. Barone pulled back the front of § 87(2)(b)'s underwear and looked at § 87(2)(b)'s menstruation pad (**Allegation F**). Det. Barone then walked § 87(2)(b) into the living room and had her sit down. § 87(2)(b) was in there in handcuffs, and moments later § 87(2)(b) and § 87(2)(b) were walked into the living room in handcuffs. § 87(2)(b) and § 87(2)(b) repeatedly asked to see a search warrant (**also Allegation E**). Officers responded that they would provide one but they never did, and Sgt. Anghel Alexandru, the supervisor on the scene, said he would show the search warrant but never did. All four occupants were arrested and charged with § 87(2)(b).

Mediation, Civil and Criminal Histories

- Due to the arrests, this case was not eligible for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
- On [§ 87(2)(b)] all four civilians filed Notice of Claims with the City of New York, each seeking one million dollars as redress for the incident. The four claims are identical and do not speak directly to the CCRB's allegations. They state, in sum, that the officers "battered" down the door, apprehended the occupants, kept them handcuffed for hours, refused to show [§ 87(2)(b)] a search warrant and provided conflicting reasons for why they were there.

Civilian and Officer CCRB Histories

- This is [§ 87(2)(b)] s, [§ 87(2)(b)] s and [§ 87(2)(b)] s first CCRB complaint.
- Sgt. Anghel has been a member of the service for eleven years. Eight allegations have been made against him, none of which have been substantiated.
- PO Rosenberg has been a member of the service for seven years. Eleven allegations have been made against him. [§ 87(2)(g), § 87(4-b)]
[REDACTED].
- PO Schuessler has been a member of the service for seven years. Seven allegations have been made against him. [§ 87(2)(g), § 87(4-b)]
[REDACTED].
- PO Barone has been a member of the service for thirteen years. Ten allegations have been made against him, none of which have been substantiated.

Civilian Contact Attempts

- [§ 87(2)(b)] was scheduled for an interview on September 25, 2015, and on October 15, 2015, and he missed both times.

Findings and Recommendations

Explanation of Subject Officer Identification

- The officers in this case were identified by the Narcotics Borough Brooklyn North search warrant tactical plan.
- The entry and search was pleaded against the immediate supervisor, Sgt. Alexandru Anghel. Furthermore, he said that he had the search warrant, at least momentarily, and admitted that he was asked by [§ 87(2)(b)] for the search warrant and said he presented it.

- § 87(2)(b) alleged that the first officers to enter the home cursed at him. According to the tactical plan, the first entering officers would have been Det. Schuessler and Det. Rosenberg, and Det. Schuessler admitted to putting § 87(2)(b) in handcuffs.
- § 87(2)(b) said an officer whom she could not describe cursed at her. The officers denied this allegation, and there was no further way to identify who it could have been without an admission from an officer. § 87(2)(g)
- § 87(2)(b) alleged a strip-search against a female officer in her 30s. There were two female officers on the tactical plan, and one was § 87(2)(b) and the other was § 87(2)(g)

Allegation A – Abuse of Authority: Sgt. Alexandru Anghel entered and searched § 87(2)(b), in Brooklyn.

It is undisputed that officers entered and searched § 87(2)(b) in Brooklyn and that they were in possession of a lawful search warrant (Board Review 62, 63, 65-67).

§ 87(2)(g) It is, therefore, recommended that **Allegation A be exonerated.**

Allegation B – Discourtesy: Det. James Schuessler spoke discourteously to § 87(2)(b)
Allegation C – Discourtesy: Det. David Rosenberg spoke discourteously to § 87(2)(b)

§ 87(2)(g) § 87(2)(b) alleged that they told him several times to “get the fuck on the ground” (Board Review 65, 66).

Det. Schuessler said he told § 87(2)(b) that he was an officer and to put his hands up. He said § 87(2)(b) was compliant. Det. Schuessler denied cursing at § 87(2)(b) (Board Review 65). Det. Rosenberg said Det. Schuessler separated from him and handcuffed § 87(2)(b) on his own. Det. Rosenberg denied cursing at § 87(2)(b) or hearing Det. Schuessler do so either. (Board Review 66). Furthermore, the additional officers who were interviewed denied hearing any profanities.

From the other room, § 87(2)(b) said she thought she heard officers saying to § 87(2)(b) in the living room, “Stay where the fuck you’re at,” “Sit the fuck down,” and, “Don’t ask no fucking questions.” (Board Review 64).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations B and C be unsubstantiated.**

Allegation D: Discourtesy: Officers spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that an officer whom she could not describe told her to “get [her] fucking hands up!” (Board Review 64). Each of the interviewed officers denied the allegation or having heard it. The only police document to aid in this identification would have

been the tactical plan, § 87(2)(g)

it is recommended that **Allegation D be closed as officer unidentified.**

Allegation E: Abuse of Authority: Sgt. Alexandru Anghel failed to show the search warrant to § 87(2)(b)

The investigation established that § 87(2)(b) asked to see the search warrant. § 87(2)(g)

§ 87(2)(b) said she asked an unidentified bald white male more than once to see the search warrant when she was approached in her bedroom. (Board Review 64). She said it was never shown to her. She did not allege that § 87(2)(b) asked to see the search warrant.

In the living room, § 87(2)(b) said he and § 87(2)(b) both asked Det. Rosenberg to see the search warrant, and officers responded they would show it but never did (Board Review 64, 60). § 87(2)(b) stated that in the living room § 87(2)(b) asked Det. Rosenberg and an unidentified officer named § 87(2)(b) to see the search warrant, and one officer told her to “relax” and never showed it to her.

Sgt. Anghel confirmed that he had a copy of the search warrant. He said that only the older of the two women, identified by the investigation as § 87(2)(b) asked to see it—once in the living room inside the apartment, and once at the stationhouse. Sgt. Anghel said he showed § 87(2)(b) the search warrant both times she asked, and she observed it for a long enough time to comprehend its subject matter. (Board Review 62). Det. Rosenberg stated that “the younger female” asked to see the search warrant. Det. Rosenberg said he did not have the search warrant, but Sgt. Anghel intervened and showed this woman the search warrant, and she looked at it and appeared satisfied. Det. Karanlall Brijbukhan, the arresting officer, said § 87(2)(b) in her room, asked to see the search warrant, and the immediate supervisor, Sgt. Anghel, presented it to her. Det. Schuessler did not hear anyone request a copy of the search warrant, said he did not have a copy of the search warrant and did not see an officer show the search warrant. Det. Barone did not recollect the incident (Board Review 67).

Patrol Guide section 212-105 requires that members of service executing search warrants must show a copy of the search warrant when able to do so safely. (Board Review 58).

§ 87(2)(g)

. It is, therefore, recommended that **Allegation E be unsubstantiated.**

Allegation F: Abuse of Authority: Det. Meagan Barone strip-searched § 87(2)(b)

§ 87(2)(g) § 87(2)(b) said she was apprehended in her bedroom and then a female officer was called in. Det. Barone, a female officer, entered the bedroom, handcuffed § 87(2)(b) and asked her if she had anything on her person. § 87(2)(b) who was wearing only a tee-shirt and underwear, told

Det. Barone no and that she was menstruating. Det. Barone pulled back the front of § 87(2)(b) s underwear and looked at § 87(2)(b) s menstruation pad.

Det. Barone confirmed that she was a part of the search warrant execution but otherwise did not have an independent recollection of the incident (Board Review 67). She did not recall any interaction with § 87(2)(b) similar to what § 87(2)(b) described.

§ 87(2)(g)

it is recommended that **Allegation F be unsubstantiated.**

Squad:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date